

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEBRA NELSON,

Plaintiff,

vs.

CASE NO. 3:25-cv-1447-MCR-ZCB

**AMENTUM GOVERNMENT
SERVICES PARENT HOLDINGS**

LLC, CLARENCE XANDER,

HEATHER GUNN, JANICE

HUGHES, DAKOTA THOMAS,

ELIAS VELASQUEZ and YUSEF

ABDUL-JAMI,

Defendants.

**DEFENDANTS' MOTION TO DISMISS SIXTH AMENDED COMPLAINT
WITH PREJUDICE AND INCORPORATED MEMORANDUM OF LAW**

Defendants, AMENTUM GOVERNMENT SERVICES PARENT HOLDINGS LLC (“Amentum”), CLARENCE XANDER (“Xander”), JANICE HUGHES (“Hughes”), HEATHER GUNN (“Gunn”), DAKOTA THOMAS (“Thomas”), ELIAS VELASQUEZ (“Velasquez”), and YUSEF ABDUL-JAMI (“Abdul-Jami”) (collectively, “Defendants”), by and through undersigned counsel and pursuant to Fed. R. Civ. P. 12(b)(6), hereby move to dismiss the Sixth Amended Complaint (Doc. 47) filed by Plaintiff, DEBRA NELSON (“Plaintiff”), for failure to state a claim.

I. INTRODUCTION

Since filing her initial Complaint on August 26, 2025, Plaintiff has had many bites at the apple to plead a viable claim against any one of the seven defendants she named in this lawsuit. Plaintiff, however, has not yet done so. A cursory review of the factual allegations in the Sixth Amended Complaint leads to the clear conclusion that Plaintiff's allegations continue to miss the mark. Accordingly, the Sixth Amended Complaint should be dismissed with prejudice for failure to state a claim.

II. PROCEDURAL BACKGROUND

Plaintiff filed her initial Complaint on August 26, 2025. (Doc. 1) The Court struck that Complaint as an impermissible shotgun pleading on August 28, 2025. (Doc. 4) Plaintiff then filed her First Amended Complaint on September 9, 2025. (Doc. 5) The Court again struck that pleading as both an impermissible shotgun pleading and violative of the page limits on September 17, 2025. (Doc. 6) On September 22, 2025, Plaintiff filed a Second Amended Complaint. (Doc. 7)

Thereafter, on October 24, 2025, Plaintiff filed a Motion for Leave to File Third Amended Complaint together with the proposed Third Amended Complaint. (Docs. 16-17) The Third Amended Complaint, however, was deficient in that it improperly incorporated by reference factual allegations from other unspecified documents and failed to clearly identify the parties against whom each count was asserted. The undersigned counsel conferred with Plaintiff and shortly after, on

November 5, 2025, Plaintiff filed a Revised Third Amended Complaint. (Doc. 18) Although it was Defendants' position the Revised Third Amended Complaint failed to state any viable claim, Defendants notified the Court that they did not oppose Plaintiff's Motion for Leave with respect to the Revised Third Amended Complaint given the liberal standard generally applicable to motions for leave to amend the pleadings. (Doc. 19) As a result, the Court granted Plaintiff's Motion for Leave to File the Revised Third Amended Complaint on November 7, 2025. (Doc. 20)

The following day, November 8, 2025, Plaintiff notified the undersigned counsel that she intended to file a Supplemental Complaint adding an additional count. Plaintiff's Supplemental Complaint Adding Count XI – Retaliation for Protected Activity (Post-Deposition Termination) was filed on November 13, 2025. (Doc. 22) That same day, the Court struck Plaintiff's filing and directed Plaintiff to submit a Motion for Leave to file an amended pleading along with the proposed pleading. (Doc. 23)

On November 17, 2025, Plaintiff filed a Motion for Leave to File Fourth Amended Complaint and a proposed Fourth Amended Complaint. (Docs. 24-25) On November 24, 2025, Plaintiff filed a second Motion for Leave to File Fourth Amended Complaint and proposed Fourth Amended Complaint. (Docs. 26-27) As before, Defendants did not oppose Plaintiff's Motion for Leave with respect to the latest iteration of the Fourth Amended Complaint given the liberal standard

generally applicable to motions for leave to amend the pleadings. Accordingly, the Court granted Plaintiff's Motion on November 25, 2025 and accepted the Fourth Amended Complaint filed at Doc. 27. (Doc. 28)

On December 23, 2025, Defendants filed a Motion to Dismiss the Fourth Amended Complaint. (Doc. 33) On December 31, 2025, Plaintiff filed a Motion for Leave to File a Fifth Amended Complaint, along with a proposed Fifth Amended Complaint. (Docs. 37-38) On January 2, 2026, the Court directed Defendants to file, within fourteen (14) days, their position regarding Plaintiff's Motion for Leave to File a Fifth Amended Complaint. (Doc. 42) However, before Defendants submitted their response, Plaintiff informed the undersigned that she intended to file a Motion for Leave to File a Sixth Amended Complaint. Consequently, on January 15, 2026, Defendants requested an extension of time to respond to the Motion for Leave to File a Fifth Amended Complaint, noting that such a response would be futile if Plaintiff proceeded with filing a Sixth Amended Complaint. (Doc. 44) The Court granted Defendants' request on January 16, 2026. (Doc. 45)

On January 20, 2026, Plaintiff filed a Motion for Leave to File a Sixth Amended Complaint, along with the proposed Sixth Amended Complaint. (Docs. 46-47) On February 3, 2026, Defendants filed a Notice of Non-Opposition to Plaintiff's Motion for Leave to File a Sixth Amended Complaint, citing the liberal

standard governing amendments to pleadings. (Doc. 49) That same day, the Court granted Plaintiff's Motion for Leave to File a Sixth Amended Complaint. (Doc. 50)

III. SUMMARY OF ARGUMENT

Despite submitting *ten versions* of her complaint to the Court, Plaintiff's *Sixth Amended* Complaint remains deficient. Specifically, Plaintiff's claims should be dismissed for the following reasons:

- Count I fails to state a claim of gender discrimination under Title VII of the Civil Rights Act of 1964, 42 U.S.C. § 2000e, *et seq.* ("Title VII"), because (1) it fails to plead an actionable adverse employment action, and (2) it fails to plead any factual allegations that any purported conduct was taken because of Plaintiff's gender.
- Count II fails to state a claim of retaliation under Title VII because (1) Plaintiff does not plead an actionable materially adverse employment action or a causal connection between any purported employment action and alleged statutorily protected conduct during her employment with Amentum, and (2) Plaintiff fails to allege exhaustion of administrative remedies with respect to her alleged retaliatory termination claim.
- Count III fails to state a claim of hostile work environment because (1) it does not allege factual allegations of any conduct that was sufficiently severe or pervasive to alter the terms and conditions of Plaintiff's employment and create a discriminatorily abusive working environment, and (2) it fails to make any connection between Plaintiff's gender or alleged protected conduct and the alleged harassment.
- Count IV fails to state a claim of defamation because it does not allege publication to a third party.
- Count V fails to state a claim of intentional infliction of emotional distress because the allegations do not meet the "outrageous conduct" standard under Florida law.
- Count VI fails to state a claim of civil conspiracy under 42 U.S.C. § 1985(3) because (1) Title VII cannot form the basis of a claim under 42 U.S.C. §

1985(3), (2) the claim is barred by the intracorporate conspiracy doctrine, and (3) Plaintiff fails to allege any “agreement” among the named defendants.

- Count VII fails to state a claim of negligent supervision because (1) it identifies no underlying tort recognized under Florida law, (2) it alleges conduct that falls squarely within the scope of ordinary employment functions, and (3) it offers no plausible factual allegations establishing proximate causation.
- Count VIII fails to state a claim under the Florida Whistleblower Act, § 448.102(3), Fla. Stat. (“FWA”), because (1) it does not allege an actual violation of law, and (2) it does not plead a retaliatory personnel action as defined by the FWA.

IV. STANDARD FOR MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM

A complaint must contain “a short and plain statement of the claim showing that the pleader is entitled to relief.” Fed. R. Civ. P. 8(a)(2). Importantly, the complaint must “give the defendant fair notice of what the plaintiff’s claim is and the grounds upon which it rests.” *See Bryant v. Downs*, No. 6:09-cv-1670-Orl-28KRS, 2010 U.S. Dist. LEXIS 63919, at *2 (M.D. Fla. July 29, 2010) (citing *Tellabs, Inc. v. Makor Issues & Rights, Ltd.*, 551 U.S. 308, 319 (2007)). “To survive a motion to dismiss, a complaint must contain sufficient factual matter, accepted as true, to ‘state a claim to relief that is plausible on its face.’” *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007)). “A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” *Id.* at 678 (citation omitted).

“Where a complaint pleads facts that are ‘merely consistent with’ the defendant’s liability, it ‘stops short of the line between possibility and plausibility of entitlement to relief’” and should be dismissed. *Iqbal*, 556 U.S. at 678 (quoting *Twombly*, 550 U.S. at 557). Indeed, “[l]egal conclusions without adequate factual support are entitled to no assumption of truth.” *Mamani v. Berzain*, 654 F.3d 1148, 1153 (11th Cir. 2011) (citations omitted). The alleged facts, being “stripped of all legal conclusion, must make a claim for relief not merely *possible*, but *plausible*.” *Turner v. Williams*, 65 F.4th 564, 577 (11th Cir. 2023) (citing *Twombly*, 550 U.S. at 570). “‘Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice’ to survive a Rule 12(b)(6) motion.” *Id.* (quoting *Iqbal*, 556 U.S. at 678). In fact, “courts may infer from the factual allegations in the complaint ‘obvious alternative explanations,’ which suggest lawful conduct rather than the unlawful conduct the plaintiff would ask the court to infer.” *Cwelt-2008 Series 1045 LLC v. PHH Corp.*, No. 1:20-cv-20334-BLOOM/Louis, 2020 U.S. Dist. LEXIS 91899, at *11 (S.D. Fla. May 27, 2020) (quoting *Am. Dental Ass’n v. Cigna Corp.*, 605 F.3d 1283, 1290 (11th Cir. 2010)).

V. COUNT I FAILS TO STATE A CLAIM OF GENDER DISCRIMINATION UNDER TITLE VII.

In Count I, Plaintiff purports to assert a claim of gender discrimination under Title VII against Amentum. Count I, however, fails to state a claim of gender discrimination because (1) Plaintiff fails to plead an actionable adverse employment

action, and (2) Plaintiff fails to plead any factual allegations (as compared to conclusory assertions) that any purported conduct was taken because of her gender.

To state a claim of gender discrimination under Title VII, Plaintiff must allege: (1) she belongs to a protected class; (2) she was subjected to an adverse employment action; (3) she was qualified to perform the job in question; and (4) she was treated less favorably than a similarly situated employee outside her protected class. *Lewis v. City of Union City, Ga.*, 918 F.3d 1213, 1220-21 (11th Cir. 2019). “To sufficiently allege a Title VII discrimination claim, an employee ‘must show some harm respecting an identifiable term or condition of employment.’” *Shed v. Univ. of S. Fla. Bd. of Trs.*, No. 23-13746, 2025 U.S. App. LEXIS 182618, at *11 (11th Cir. May 30, 2025) (quoting *Muldrow v. City of St. Louis, Missouri*, 601 U.S. 346, 354-55 (2024)). “The Supreme Court has stressed that Title VII provides no protection against ‘those petty slights or minor annoyances that often take place at work and that all employees experience.’” *Ricks v. Indyne, Inc.*, 552 F. Supp. 3d 1248, 1254 (N.D. Fla. 2021) (quoting *Harrison v. Belk Inc.*, 748 F. App’x 936, 943 (11th Cir. 2018)).

Here, Plaintiff fails to allege any actionable adverse employment action. Instead, she relies on general references to being treated “less favorably” in terms of “job assignments” in that she alleges that she took on “more of the work load,” and “performance evaluations” in that she alleges that she received a written warning for

no-call/no-show. (Doc. 47 at ¶ 31) These allegations do not constitute an adverse employment action under Title VII. *See Gillespie v. City of Orlando*, No. 6:17-cv-635-Orl-41GJK, 2018 U.S. Dist. LEXIS 19194, at *8 (M.D. Fla. Feb. 6, 2018) (“Plaintiff’s allegations of increased workload, without more, are insufficient to demonstrate that he suffered an adverse employment action”). While Plaintiff alleges in a conclusory manner that she experienced a “loss of pay” and “loss of promotion opportunities” (Doc. 47 at ¶ 33), Plaintiff pleads no facts explaining how a heavier workload or written warning resulted in a “loss of pay.” Similarly, Plaintiff’s reference to “loss of promotion opportunities” is entirely speculative. She identifies no promotion, no application, no qualifications, no comparator, and no decisionmaker. These gaps underscore the speculative nature of her allegations and further demonstrate the absence of any plausible adverse employment action. Simply put, Plaintiff has failed to allege any facts to show a change in the terms, conditions, or privileges of employment. As such, she has failed to satisfy this basic pleading requirement. *See Davis v. Orange Cty.*, No. 6:22-cv-2222-PGB-UAM, 2025 U.S. Dist. LEXIS 134506 (M.D. Fla. Mar. 30, 2025) (“Even if Plaintiff alleged ‘some harm,’ Plaintiff fails to allege ‘some harm respecting an identifiable term or condition of employment.’”).

Further, Count I omits any factual allegations sufficient to give rise to an inference of a discriminatory gender-based motive. Rather, Plaintiff puts forth

nothing more than vague and conclusory assertions, such as “a pattern of protecting male employees,” without alleging any facts in support of any such pattern. (Doc. 47 at ¶ 32) Likewise, Plaintiff’s attempt to attribute discriminatory motive to the use of terms such as “aggressive” or “attitude” is unsupported. These are not “gender-based” terms. Her assertion that “gender-based language” was used by Xander is wholly unsupported by the allegations in the Sixth Amended Complaint. Rather, Plaintiff alleges Xander used the terms “aggressive” and “attitude” in describing a text message. (Doc. 47 at ¶ 20) Plaintiff alleges no facts showing these terms were used in a gendered manner, applied differently to male employees, or connected to any adverse action. Additionally, Plaintiff fails to allege that Xander took any employment action against Plaintiff and, thus, comments he is alleged to have made are not relevant to show discriminatory animus. Such conclusory assertions, unsupported by factual allegations connecting any purported conduct to discriminatory animus, are insufficient to state a claim for gender discrimination.

Such bare assertions fall far short of the plausibility standard required to state a Title VII claim. Because Plaintiff has failed to plead facts supporting the essential elements of a Title VII gender discrimination claim, Count I should be dismissed *with prejudice*.

VI. COUNT II FAILS TO STATE RETALIATION CLAIMS UNDER TITLE VII.

In Count II, Plaintiff purports to assert claims of retaliation under Title VII against Amentum, alleging (1) she received write ups on August 1, 2025 and August 6, 2025, and (2) her employment was terminated on October 29, 2025. With respect to the write ups, Count II fails to state a claim of retaliation because write ups are not a materially adverse employment action and Plaintiff did not engage in any statutorily protected conduct before she received the write ups. With respect to her termination, Plaintiff has not pled exhaustion of administrative remedies. Accordingly, Count II should be dismissed *with prejudice*.

To state a claim of retaliation under Title VII, Plaintiff must allege: (1) she engaged in statutorily protected conduct, (2) she was subjected to an adverse employment action, and (3) there was a causal relationship between the two events. *Tolar v. Bradley Arant Boult Cummings, LLP*, 997 F.3d 1280, 1289 (11th Cir. 2021). To be actionable, an employment action must be materially adverse as viewed by a reasonable person. *See Robinson v. Holman*, No. 23-11735, 2024 U.S. App. LEXIS 13690, at *4-5 (11th Cir. June 6, 2024) (quoting *Burlington N. & Santa Fe Ry. Co. v. White*, 548 U.S. 53, 68 (2006)). In other words, the employment action must be serious enough to dissuade a reasonable employee from engaging in protected conduct. *Id.* (quoting *Muldrow*, 601 U.S. at 348 (2024)).

Here, Plaintiff's allegation that she received write ups does not identify any resulting material change to the terms or conditions of her employment. Courts

consistently hold that written warnings, without accompanying consequences, do not constitute adverse employment actions. *See Barnett v. Athens Reg'l Med. Ctr., Inc.*, 550 F. App'x 711, 713 (11th Cir. 2013); *see also Robinson v. HCA Healthcare Servs. Fla., Inc.*, No. 8:24-cv-275-TPB-AEP, 2024 U.S. Dist. LEXIS 153308, at *4 (M.D. Fla. Aug. 27, 2024) (“[A] plaintiff must show a material adversity — Title VII . . . does not set forth a general civility code for the American workplace, and petty slights, minor annoyances, and simple lack of good manners will not rise to the level of materially adverse actions for retaliation purposes.”) (internal quotations omitted) (quoting *Burlington N. & Santa Fe Ry. Co.*, 548 U.S. at 67 (2006)).

Additionally, the alleged August 1 and August 6 write ups occurred *before* Plaintiff filed her EEOC charge of discrimination on August 14, 2025, making retaliation impossible as a matter of law. *See Drago v. Jenne*, 453 F.3d 1301, 1308 (11th Cir. 2006) (adverse action preceding protected activity cannot support causation). The only purported “protected activity” Plaintiff alleges before August 1, 2025 is “[r]eporting safety, quality, and compliance violations” in May 2025. (Doc. 47 at ¶ 36). This, however, does not qualify as protected activity under Title VII because such complaints have nothing to do with discrimination based on sex or any other protected characteristic. Title VII protects opposition to unlawful employment practices as defined by Title VII—not generalized workplace, safety, or operational concerns. *See Coutu v. Martin Cty. Bd. of Cty. Comm'rs*, 47 F.3d

1068, 1074 (11th Cir. 1995) (complaints unrelated to unlawful discrimination are not protected activity). For a complaint to constitute protected conduct, “the employee must, at the very least, communicate her belief that discrimination is occurring to the employer. It is not enough for the employee merely to complain about a certain policy or certain behavior of co-workers and rely on the employer to infer that discrimination has occurred.” *Webb v. R&B Holding Co.*, 992 F. Supp. 1382, 1389 (S.D. Fla. 1998). Courts have consistently required an employee’s complaint clearly put the employer on notice of a violation of the law. *See Marcelin v. Eckerd Corp. of Fla., Inc.*, No. 8:04-CV-491-T-17MAP, 2006 U.S. Dist. LEXIS 18097, at *28 (M.D. Fla. Apr. 10, 2006). Generalized complaints about working conditions, without reference to unlawful discrimination, cannot form the basis for a retaliation claim. *Long v. Russell Cnty. Comm’n*, No. 3:09-CV-90-WKW [WO], 2010 U.S. Dist. LEXIS 136618, at *49-50 (M.D. Ala. Dec. 27, 2010). Because Plaintiff did not engage in protected activity under Title VII before she received the alleged write ups, her retaliation claims fail as a matter of law with respect to the alleged write ups and Count II should be dismissed.

With respect to Plaintiff’s retaliatory termination claim in Count II, it should be dismissed because Plaintiff fails to plead that she exhausted administrative remedies before filing this claim. Before filing suit under Title VII, a plaintiff must first timely exhaust administrative remedies by filing a charge of discrimination with

the Equal Employment Opportunity Commission (“EEOC”) and obtaining a notice of right to sue from the EEOC. *See Karaba v. DSI Sec. Servs.*, No. 2:16-cv-664-FtM-99MRM, 2017 U.S. Dist. LEXIS 21069, at *2 (M.D. Fla. Feb. 14, 2017). To state a claim under Title VII, a plaintiff must plead sufficient facts to show she has exhausted her administrative remedies pursuant to Title VII. A failure to plead exhaustion of administrative remedies results in dismissal of the complaint. *See Francois v. Dist. Bd. of Trs. of Broward Coll.*, No. 24-61196-CIV-DAMIAN, 2025 U.S. Dist. LEXIS 133510, at *8-9 (S.D. Fla. June 23, 2025) (“Because Plaintiff failed to allege compliance with any of the Title VII pre-suit exhaustion requirements, dismissal is appropriate on this basis alone.”) (citing *Tillery v. U.S. Dep’t of Homeland Sec.*, 402 F. App’x 421, 425-26 (11th Cir. 2010) (upholding trial court’s dismissal of Title VII retaliation claim based exclusively on plaintiff’s failure to plead exhaustion of administrative remedies)). Plaintiff’s Sixth Amended Complaint fails to show that her August 14, 2025 Charge of Discrimination or the subsequent Notice of Right to Sue issued that same day (Doc. 47 at ¶¶ 12-14) encompasses the retaliatory termination claim based on her October 29, 2025 termination. Because she has not demonstrated administrative exhaustion, Count II should be dismissed.

VII. PLAINTIFF’S BARE ALLEGATIONS IN COUNT III FAIL TO STATE A CLAIM OF HOSTILE WORK ENVIRONMENT (“HWE”) UNDER TITLE VII.

Plaintiff's sex-based HWE claim against Amentum in Count III should be dismissed *with prejudice*. The allegations in the Sixth Amended Complaint fall woefully short of alleging harassment that was sufficiently severe or pervasive to alter the terms and conditions of Plaintiff's employment and create a discriminatorily abusive working environment. Plaintiff also fails to make any connection between her gender and the alleged harassment.

To state an HWE claim, Plaintiff must allege:

(1) that [s]he belongs to a protected group; (2) that [s]he has been subject to unwelcome harassment; (3) that the harassment must have been based on a protected characteristic of the employee . . .; (4) that the harassment was sufficiently severe or pervasive to alter the terms and conditions of employment and create a discriminatorily abusive working environment; and (5) that the employer is responsible for such environment under a theory of either vicarious or direct liability.

Miller v. Kenworth of Dothan, Inc., 277 F.3d 1269, 1275 (11th Cir. 2002). Courts look at multiple factors when determining whether the plaintiff's allegations satisfy the "severe or pervasive" requirement: "(1) the frequency of the conduct; (2) the severity of the conduct; (3) whether the conduct is physically threatening or humiliating, or a mere offensive utterance; and (4) whether the conduct unreasonably interferes with the employee's job performance." *Mendoza v. Borden, Inc.*, 195 F.3d 1238, 1245 (11th Cir. 1999) (citations omitted). The requirement that the alleged harassment be "severe or pervasive" is a high standard that must amount to

“extreme” discriminatory conduct that mere unpleasant conduct cannot satisfy. *See Godoy v. Habersham Cnty*, 211 F. App’x 850, 854 (11th Cir. 2005).

Count III is devoid of any allegations that the purported conduct was frequent, severe, physically threatening, humiliating, or that it unreasonably interfered with Plaintiff’s job performance. Instead, Plaintiff alleges only that she was cursed at on a single occasion, she was told once that her inquiry “didn’t matter,” and management did not discipline unidentified individuals for unspecified conduct. (Doc. 47 at ¶ 41) Under well-established Eleventh Circuit precedent, these isolated allegations – wholly unconnected to Plaintiff’s gender – cannot, as a matter of law, support a viable HWE claim. *See Uppal v. Hosp. Corp. of Am.*, 482 F. App’x 394, 397 (11th Cir. 2012) (affirming dismissal of plaintiff’s sex-based HWE claim because “a single incident of harassing conduct cannot support a hostile work environment claim”); *Pratt v. Compass Grp. USA, Inc.*, No. 24-CV-81308-RLR, 2024 U.S. Dist. LEXIS 212102, at *3–*4 (S.D. Fla. Nov. 21, 2024) (dismissing sex-based HWE claim where the plaintiff alleged only “one offensive remark with specificity”). Far more serious allegations have been dismissed for failure to state an HWE claim. *See, e.g., Walsh v. City of Ocala*, No. 5:18-cv-402-Oc-30PRL, 2019 U.S. Dist. LEXIS 122484, at *12–13 (M.D. Fla. June 17, 2019) (dismissing complaint containing allegations of eight episodes in which, among other things, a supervisor made explicit sexual comments and wrestled with a female employee to

get her cell phone to see nude photographs of her and “shoved her face in his groin simulating her performing oral sex on him”); *Tiberi v. Cent. Broward Water Control Dist.*, No. 22-60766-CIV-SINGHAL, 2023 U.S. Dist. LEXIS 53976, at *11-*12 (S.D. Fla. Mar. 28, 2023) (dismissing sex-based HWE claim alleging continued comments over a span of approximately six months and collecting cases of courts dismissing HWE claims based on conduct that was far more serious).

Additionally, Count III is fatally deficient because it fails to allege any facts that plausibly connect the purported harassment to her gender. Count III contains no allegations of statements, conduct, or surrounding circumstances suggesting that the alleged treatment was motivated by Plaintiff’s gender. The only reference Plaintiff makes to purported sex-based harassment is a single conclusory assertion that “Plaintiff was subjected to unwelcome harassment because of her sex” (Doc. 47 at ¶ 41) Such a bare, formulaic allegation is insufficient to state a plausible claim and cannot substitute for well-pleaded facts showing discriminatory animus. In short, Count III does nothing more than assert “threadbare recitals” of the elements of the cause of action and “mere conclusory statements.” This is wholly insufficient to withstand a motion to dismiss. Because Plaintiff’s bare allegations cannot form the basis for a sex-based HWE claim as a matter of law, Count III should be dismissed *with prejudice*.

VIII. PLAINTIFF’S DEFAMATION CLAIM IN COUNT IV SHOULD BE DISMISSED WITH PREJUDICE.

Count IV is pled against Velasquez, Xander, Thomas, and Hughes. In support of her defamation claim, Plaintiff alleges:

- Thomas and Hughes “circulated a written memorandum to Amentum management stating that Plaintiff ‘took unauthorized leave’” (Doc. 47 at ¶ 45);
- Velasquez accused Plaintiff of cursing during a meeting, although she does not identify with any specificity to whom, when, how, or why this “accusation” was made (Doc. 47 at ¶ 47); and
- Xander stated that “Plaintiff cursed too,” again without identifying with any specificity to whom, when, how, or why this statement was allegedly made (Doc. 47 at ¶¶ 48-49).

In conclusory fashion, Plaintiff asserts that these alleged statements were “communicated” to “Amentum management and coworkers” and placed in Plaintiff’s personnel file. (Doc. 47 at ¶ 49) These allegations fail to state a claim of defamation because Plaintiff does not – and cannot – allege publication *to a third party*. Accordingly, Count IV should be dismissed *with prejudice*.

Under Florida law, defamation requires “the unprivileged publication of false statements which naturally and proximately result in injury to another.” *Hoch v. Loren*, 273 So. 3d 56, 57 (Fla. 4th DCA 2019) (quoting *Wolfson v. Kirk*, 273 So. 2d 774, 776 (Fla. 4th DCA 1973)). “Publication of defamatory matter is communication of the statement *to a third person*.” *Id.* (emphasis supplied). Thus, “[a] defamatory

statement does not become actionable . . . until it is published or communicated to a third person; statements made to the person alleging the defamation do not qualify.” *Am. Airlines, Inc. v. Geddes*, 960 So. 2d 830, 833 (Fla. 3d DCA 2007). Additionally, Florida courts have consistently held that communications between managerial employees of the same corporation do not constitute publication to a third party. *Hoch*, 273 So. 3d at 58 (“Florida courts have found no publication where . . . the defamatory statement was made by one managerial employee of the corporation to another.”). Likewise, “a communication made in good faith on any subject matter by one having an interest therein, or in reference to which he had a duty, is privileged if made to a person having a corresponding interest or duty.” *Am. Airlines, Inc.*, 960 So. 2d at 833. This black letter principle of defamation law has repeatedly been applied to hold that statements about an employee were not actionable where, as here, they were allegedly shared only with coworkers who either participated in the investigation or had a legitimate interest in disciplinary matters. *See id.*

A cursory review of the factual allegations pled in support of Count IV clearly shows that Plaintiff has not alleged publication to a third party. Rather, she alleges that statements were made to Amentum employees and placed in her personnel file. Without publication to a third party, Plaintiff cannot state a claim of defamation as a matter of law.

Additionally, Count IV should be dismissed because Plaintiff did not identify with any specificity the “management and coworkers” to whom allegedly defamatory statements were made. *See Buckner v. Lower Florida Keys Hospital District*, 403 So. 2d 1025, 1027–28 (Fla. 3d DCA 1981) (holding that a complaint alleging publication to “numerous third parties on numerous occasions” was deficient because it failed to identify the specific recipients of the alleged remarks); *Jackson v. North Broward County Hospital District*, 766 So. 2d 256, 257 (Fla. 4th DCA 2000) (affirming dismissal because the plaintiff failed to “specifically identify the persons” to whom the defamatory comments were allegedly made). Plaintiff’s reliance on vague labels such as “coworkers” and “management” suffers from the same defect and, therefore, fails to state a claim.

Accordingly, dismissal *with prejudice* is warranted.

IX. PLAINTIFF’S INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (“IIED”) CLAIM IN COUNT V SHOULD BE DISMISSED WITH PREJUDICE BECAUSE PLAINTIFF FAILS TO PLEAD “OUTRAGEOUS CONDUCT.”

Count V is pled against Amentum, Velasquez, Hughes, and Thomas. Plaintiff’s allegations in Count V fall woefully short of Florida’s high standard for pleading an IIED claim. To state an IIED claim, Plaintiff must allege that: (1) the conduct was intentional or reckless; (2) the conduct was outrageous; (3) the conduct caused emotional distress; and (4) the emotional distress was severe. *Williams v. Worldwide Flight Servs.*, 877 So. 2d 869, 870 (Fla. 3d DCA 2004) (citing *De La*

Campa v. Grifols Am., Inc., 819 So. 2d 940, 943 (Fla. 3d DCA 2002)). “Outrageous conduct is conduct that is ‘so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency.’” *Id.* (quoting *Metro. Life Ins. Co. v. McCarson*, 467 So. 2d 277, 278–79 (Fla. 1985)). The issue of whether a defendant’s activities “rise to the level of being extreme and outrageous so as to permit a claim for intentional infliction of emotional distress is a legal question in the first instance for the court to decide as a matter of law.” *Rivera v. Am. Mem. Ctrs., Inc.*, No. 05-CV-21514, 2006 U.S. Dist. LEXIS 78364, at *11 (S.D. Fla. Oct. 27, 2006) (citing *Baker v. Fla. Nat’l Bank*, 559 So. 2d 284, 287 (Fla. 4th DCA 1990)).

“While there is no exhaustive or concrete list of what constitutes outrageous conduct, Florida common law has evolved an extremely high standard.” *Carey v. O’Reilly Auto Stores, Inc.*, No. 18-cv-81588, 2019 U.S. Dist. LEXIS 92487, at *25 (S.D. Fla. May 31, 2019) (quoting *Garcia v. Carnival Corp.*, 838 F. Supp. 2d 1334, 1339 (S.D. Fla. 2012)). Notably, “[a]llegations of verbal harassment, without significant physical attack, are insufficient to plead an intentional infliction of emotional distress claim.” *Id.* (quoting *Delk v. Bank of Am., N.A.*, No. 5:14-cv-469, 2016 U.S. Dist. LEXIS 1149, at *7 (M.D. Fla. Jan. 6, 2016) (citing *Bakar v. Bryant*, No. 13-21927-CIV, 2013 U.S. Dist. LEXIS 144972, at *2–3 (S.D. Fla. Oct. 7, 2013))). Indeed, the “touchstone” of an IIED claim is “the presence of relentless

physical, as well as verbal, harassment.” *Id.* (quoting *DeShiro v. Branch*, No. 96-800-CIV-T-17E, 1996 U.S. Dist. LEXIS 16946, at *3 (M.D. Fla. Nov. 4, 1996)).

A cursory review of the allegations pled in support of Count V shows they are plainly insufficient to state a claim of IIED. In evaluating whether Plaintiff can state a claim of IIED against each of the identified defendants, the Court should look at the allegations against that defendant and determine whether Plaintiff has alleged “outrageous conduct” as to that defendant. She plainly has not:

- With respect to Hughes and Thomas, she asserts that “Hughes and Thomas fabricated disciplinary allegations that Plaintiff took ‘unauthorized leave.’”
- With respect to Amentum, she asserts that Amentum terminated her after a deposition.
- With respect to Velasquez, she conclusory asserts that “Velasquez verbally assaulted Plaintiff without intervention.”

(Doc. 47 at ¶ 53)

Even taken as true, these allegations do not rise to the level of “outrageous conduct” required under Florida law to sustain an IIED claim. *See, e.g., Leuzzi v. Fawcett Mem’l Hosp., Inc.*, No. 2:25-cv-396-SPC-DNF, 2025 U.S. Dist. LEXIS 481857, at *13 (M.D. Fla. Oct. 16, 2025) (regarding an IIED claim: “Florida courts have found allegations of false statements insufficient to state a claim.”); *Williams*, 877 So. 2d at 870-71 (finding that the alleged conduct, including repeated use of

racial slurs, issuance of unfounded disciplinary actions, threats of termination, and placement in hazardous work assignments, fell short of meeting the threshold of extreme and outrageous behavior required to sustain an IIED claim).

Additionally, Count V should be dismissed because Plaintiff fails to allege “severe emotional distress.” “A plaintiff attempting to allege the ‘severe emotional distress’ element of an IIED claim must allege that [s]he suffered distress so severe that no reasonable [person] could be expected to endure it.” *Grasso v. Det. Tyler Varner*, No. 4:21-cv-310-WS-MJF, 2023 U.S. Dist. LEXIS 41655, at *23–24 (N.D. Fla. Jan. 30, 2023), report and recommendation adopted by No. 4:21cv310-WS/MJF, 2023 U.S. Dist. LEXIS 40254, at *1 (N.D. Fla. Mar. 10, 2023). Here, Plaintiff alleges that she experienced “humiliation, anxiety, sleeplessness, and ongoing emotional trauma.” This is insufficient to meet the “severe emotional distress” element of an IIED claim.

Lastly, Count V against Amentum fails because Plaintiff alleges no facts supporting vicarious liability.

In short, Count V does nothing more than assert “threadbare recitals” of the elements of the cause of action and “mere conclusory statements.” This is wholly insufficient to withstand a motion to dismiss. For the foregoing reasons, Count V should be dismissed *with prejudice*.

X. COUNT VI SHOULD BE DISMISSED *WITH PREJUDICE* BECAUSE PLAINTIFF'S ALLEGATIONS FAIL TO STATE A CIVIL CONSPIRACY CLAIM UNDER 42 U.S.C. § 1985(3).

Plaintiff's civil conspiracy claim asserted against the individual defendants under 42 U.S.C. § 1985(3) fails as a matter of law and should be dismissed.¹ To state a claim under 42 U.S.C. § 1985(3), Plaintiff must allege: (1) the defendants engaged in a conspiracy; (2) the conspiracy's purpose was to directly or indirectly deprive a protected person or class of the equal protection of the laws, or equal privileges and immunities under the laws; (3) a conspirator committed an act to further the conspiracy; and (4) as a result, the plaintiff suffered injury to either her person or her property, or was deprived of a right or privilege of a citizen of the United States. *Johnson v. City of Fort Lauderdale*, 126 F.3d 1372, 1379 (11th Cir. 1997). Where, as here, the alleged § 1985(3) conspirators are private actors, Plaintiff must demonstrate that the conspiracy was aimed at rights constitutionally protected against private impairment. *Bray v. Alexandria Women's Health Clinic*, 506 U.S. 263, 274 (1993); *Park v. City of Atlanta*, 120 F.3d 1157, 1162 (11th Cir. 1997). These rights include only select "serious constitutional right[s]." *Cook v. Randolph County*, 573 F.3d 1143, 1157 (11th Cir. 2009) (quotation omitted). The only rights

¹ While the heading of Count VI states that it is against Xander, Hughes, Gunn, Thomas, Velasquez, and Abdul-Jami only, paragraphs 58 and 62 include allegations against Amentum, making it unclear as to whether Plaintiff intends to plead Count VI against Amentum. To the extent Amentum is included in Count VI, the claims against Amentum should be dismissed *with prejudice* for the same reasons that the claims against the individual defendants should be dismissed *with prejudice*.

the Supreme Court has expressly declared enforceable against private conspirators under § 1985(3) are the right to interstate travel and the right against involuntary servitude. *Jimenez v. Wellstar Health Sys.*, 596 F.3d 1304, 1312 (11th Cir. 2010) (citing *Bray*, 506 U.S. at 278). “Conversely, the Supreme Court has declared . . . the rights protected under Title VII, *Great Am. Fed. Sav. & Loan Ass’n v. Novotny*, 442 U.S. 366, 378, 99 S. Ct. 2345, 2352, 60 L. Ed. 2d 957 (1979), insufficient to form the basis of § 1985(3) actions against private conspirators.” *Id.*

Here, Plaintiff fails to allege that the conspiracy was aimed at rights constitutionally protected against private impairment. While Plaintiff does not specifically identify what constitutional right she asserts underlies her 42 U.S.C. § 1985(3) claim, Plaintiff alleges that she was deprived of “the right to be free from sex-based discrimination and retaliation in the terms and conditions of employment.” (Doc. 47 at ¶ 63) It is well-established that “conspiracies to violate rights protected by Title VII cannot form the basis of § 1985(3) suits.” *Jimenez*, 596 F.3d at 1312. Accordingly, Count VI fails as a matter of law.

Moreover, the intracorporate conspiracy doctrine bars Plaintiff’s claim. Under the intracorporate conspiracy doctrine, a corporation’s employees, acting as agents of the corporation, are deemed incapable of conspiring among themselves or with the corporation. This doctrine stems from basic agency principles that “attribute the acts of agents of a corporation to the corporation, so that all of their acts are

considered to be those of a single legal actor.” *Dussouy v. Gulf Coast Inv. Corp.*, 660 F.2d 594, 603 (5th Cir. 1981); *see also United States v. Hartley*, 678 F.2d 961, 970 (11th Cir.1982). The reasoning behind the intracorporate conspiracy doctrine is that it is not possible for a single legal entity consisting of the corporation and its agents to conspire with itself, just as it is not possible for an individual person to conspire with himself. *See Dickerson v. Alachua Cnty. Comm’n*, 200 F.3d 761, 767 (11th Cir. 2000); *Dussouy*, 660 F.2d at 603 (explaining that “the multiplicity of actors necessary to conspiracy” is negated when the agents’ acts are attributed to the corporation and the corporation and its agents are viewed as a single legal actor); *Nelson Radio & Supply Co., Inc. v. Motorola, Inc.*, 200 F.2d 911, 914 (5th Cir. 1952) (stating that “[a] corporation cannot conspire with itself any more than a private individual can”). Here, the alleged conspirators are all employees or agents of Amentum. No one outside of Amentum is alleged to have participated in any conspiracy. Her claim is, therefore, barred.

Finally, Plaintiff pleads no facts showing the existence of any “agreement” among the individual defendants. Plaintiff identifies no communications, no coordinated plan, and no factual basis from which a conspiracy could be inferred. She offers only conclusory assertions that the individual defendants “acted in concert and reached an agreement” and “coordinated” their conduct. Such bare allegations are insufficient. Courts have repeatedly held that 42 U.S.C. § 1985(3) claims cannot

rest on “vague and conclusory allegations suggesting a conspiracy.” *See Price v. Collier*, No. 5:25-cv-50-AW-MJF, 2025 U.S. Dist. LEXIS 487506, at *13 (N.D. Fla. Aug. 5, 2025); *see also Fullman v. Graddick*, 739 F.2d 553, 556–57 (11th Cir. 1984). In short, Count VI is legally deficient on multiple grounds and must be dismissed *with prejudice*.

XI. COUNT VII SHOULD BE DISMISSED WITH PREJUDICE BECAUSE PLAINTIFF’S ALLEGATIONS FAIL TO STATE A NEGLIGENT SUPERVISION CLAIM.

Plaintiff’s negligent supervision claim in Count VII is asserted only against Amentum. The claim rests entirely on allegations that certain of the individual defendants engaged in “unsafe, retaliatory, and procedurally improper conduct.” (Doc. 47 at ¶ 66) Plaintiff identifies no actionable tort recognized under Florida law in support of her negligent supervision claim.

“To state a cause of action for negligent supervision . . . under Florida law the claimant must allege: (1) the existence of a relationship giving rise to a legal duty to supervise; (2) negligent breach of that duty; and (3) proximate causation by virtue of the breach.” *Vaden v. Campbell*, No. 4:09cv12-RH/WCS, 2009 U.S. Dist. LEXIS 127138, at *5 (N.D. Fla. July 2, 2009) (citing *Albra v. City of Ft. Lauderdale*, 232 F. App’x 885, 888 (11th Cir. 2007)). Critically, “[a] claim for negligent supervision and retention must be based on an injury resulting from a tort recognized under Florida law.” *Mighty v. Genesis Eldercare Rehab. Servs.*, No. 9:18-cv-80440-WPD,

2018 U.S. Dist. LEXIS 20117, at *5 (S.D. Fla. May 23, 2018) (citation omitted). Discrimination and retaliation are not recognized as independent torts that can support a claim of negligent supervision. *Id.* (granting the defendant's motion to dismiss the plaintiff's negligent supervision claims where the underlying allegations asserted that employees engaged in discrimination in violation of Title VII). Courts consistently dismiss negligent supervision claims where, as here, the plaintiff attempts to repackage statutory discrimination or retaliation theories into a tort claim. *See Freese v. Wuesthoff Health Sys., Inc.*, 2006 WL 1382111, at *8 (M.D. Fla. May 19, 2006).

Plaintiff's allegations in Count VII do not identify any underlying tort committed by any employee. Instead, Plaintiff asserts in conclusory fashion – without any supporting factual allegations – that Amentum did not correct purported safety issues and mishandled disciplinary processes. (Doc. 47 at ¶ 67) None of these allegations describes a tort recognized under Florida law. They amount to nothing more than Plaintiff's workplace grievances, which cannot serve as the predicate for a viable negligent supervision claim.

Additionally, Plaintiff fails to allege that any employee acted outside the scope of employment, which is a required element. *See ACTS Ret.-Life Cmtys., Inc. v. Estate of Zimmer*, 206 So. 3d 112, 115 (Fla. 4th DCA 2016). All conduct Plaintiff alleges—investigating safety issues, assigning work, handling discipline, and

responding to complaints—is squarely within the scope of supervisory employment functions. Indeed, Plaintiff alleges that the individual defendants “acted pursuant to Amentum’s policies.” (Doc. 47 at ¶ 11)

Lastly, Plaintiff fails to plausibly allege proximate causation. She asserts only that Amentum’s alleged conduct “was a proximate cause” of her emotional distress and economic losses (Doc. 47 at ¶ 68), but she pleads no facts showing how any alleged deficiency caused any specific injury or loss. Such conclusory statements are insufficient to survive dismissal.

In sum, Plaintiff alleges no underlying cognizable tort, no conduct outside the scope of employment, and no plausible causation. Rather, she describes nothing more than routine workplace management decisions with which she disagrees. As such, Plaintiff’s negligent supervision claim is legally deficient on multiple grounds and should be dismissed *with prejudice*.

XII. COUNT VIII SHOULD BE DISMISSED WITH PREJUDICE BECAUSE PLAINTIFF’S ALLEGATIONS FAIL TO STATE AN FWA CLAIM.

Plaintiff has failed to allege any “law, rule, or regulation” which she contends Amentum violated or any “retaliatory personnel action” as defined by the FWA. Accordingly, Count VIII should be dismissed *with prejudice*.

Plaintiff brings her FWA claim under section 448.102(3), Fla. Stat., which prohibits “retaliatory personnel action” against an employee because the employee

has “[o]bjected to, or refused to participate in, any activity, policy, or practice of the employer which is in violation of a law, rule, or regulation.” Courts in this district have long held that this statutory language “plainly requires objection to an actual violation of law as opposed to merely a good-faith, objectively reasonable belief.” *Rivera v. Sodexo Ops., LLC*, No. 5:18-cv-248-TKW-MJF, 2019 U.S. Dist. LEXIS 250266, at *3-*4 (N.D. Fla. Oct. 29, 2019) (citing *Wallace v. Gainesville Hotel Mgmt., LLC*, 2015 U.S. Dist. LEXIS 186301, at *6–7 (N.D. Fla. June 9, 2015)). Plaintiff’s allegations do not satisfy this threshold requirement. Plaintiff does not identify the specific “law, rule, or regulation” allegedly violated or any factual allegations that could plausibly show that any violation actually occurred. Likewise, Plaintiff does not allege any “activity, policy, or practice of the employer.” Her conclusory assertions are insufficient under the FWA. *See Moore v. Pooches of Largo, Inc.*, No. 23-13568, 2025 U.S. App. LEXIS 12230, at *8-9 (11th Cir. May 20, 2025) (affirming the grant of a motion to dismiss, stating: “The FWA requires that an employee object to an employer’s violation of a ‘law, rule, or regulation.’ Fla. Stat. § 448.102(3).”); *Rodriguez v. Maxim Healthcare Servs., Inc.*, No. 4:19cv66-MW/CAS, 2019 U.S. Dist. LEXIS 250216, at *7 (N.D. Fla. Oct. 3, 2019) (granting a motion to dismiss, stating that “Plaintiff must plead a violation of a ‘law, rule, or regulation’ and that the violation was an ‘activity, policy, or practice of the employer.’”).

Additionally, Plaintiff fails to allege any “retaliatory personnel action,” which is defined by the FWA as “the discharge, suspension, or demotion by an employer of an employee or any other adverse employment action taken by an employer against an employee in the terms and conditions of employment.” § 448.101(5), Fla. Stat. The purported retaliatory actions Plaintiff identifies—being instructed not to communicate with a coworker, being described as “aggressive” or having an “attitude,” management “shifting focus” to her, and alleged concealment of accusations (Doc. 47 at ¶ 72)—are precisely the type of “petty slights or minor annoyances that often take place at work and that all employees experience.” *Boan v. Fla. Dep’t of Corr.*, No. 23-13116, 2024 U.S. App. LEXIS 15061, at *9 (11th Cir. June 21, 2024); *see also Baptiste v. City of Miami*, No. 23-22670-CIV-DAMIAN/Louis, 2025 U.S. Dist. LEXIS 64086, at *43 (S.D. Fla. Mar. 30, 2025) (“Conduct that falls short of an ultimate employment decision must meet some threshold level of substantiality to be cognizable”) (citing *Bell v. Ga.-Pacific Corp.*, 390 F. Supp. 2d 1182, 1188-89 (M.D. Fla. 2005)). Further, Plaintiff’s reference to an August 6 “disciplinary write-up” is likewise insufficient because she provides no factual detail about its contents, consequences, or impact on her employment. (Doc. 47 at ¶ 72) *See Kubiak v. S.W. Cowboy, Inc.*, 164 F. Supp. 3d 1344, 1367 (M.D. Fla. 2016) (“A write-up alone, without any indication that it was accompanied by a reduction in pay, benefits, responsibilities, or some other adverse

effect, is insufficient to establish an adverse employment action.”). Finally, her vague assertion of “escalating adverse actions” is precisely the type of conclusory allegation that is insufficient to state a claim. Simply put, Plaintiff’s allegations do not constitute “retaliatory personnel action” as a matter of law.

For these reasons, Count VIII should be dismissed *with prejudice*.

XIII. CONCLUSION

WHEREFORE, for the foregoing reasons, Defendants, Amentum Government Services Parent Holdings LLC, Clarence Xander, Janice Hughes, Heather Gunn, Dakota Thomas, Elias Velasquez, and Yusef Abdul-Jami, respectfully request this Court enter an Order granting this Motion to Dismiss Sixth Amended Complaint, dismissing Plaintiff’s Sixth Amended Complaint against Defendants in its entirety, and awarding any other relief this Court deems just and proper, including attorneys’ fees and costs to Defendants.

Certification of Compliance with N.D. Fla. L.R. 7.1(F)

Pursuant to N.D. Fla. L.R. 7.1(F), counsel for Defendants confirm this Motion and the supporting Memorandum of Law total 7,533 words.

DATED this 24th day of February, 2026.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 24th day of February 2026, a true and correct copy of the foregoing was electronically filed with the Court by using the CM/ECF system and served via e-mail to the following *pro se* Plaintiff:

Debra Nelson

[REDACTED]
[REDACTED]
[REDACTED]

Pro se Plaintiff

/s/ Lindsay D. Swiger
Lindsay D. Swiger